

TX.2 Permit Application Checklist

Two checklists — one for a lot inside a city, one for the unincorporated county — plus the homestead lien rules that apply on both tracks.

Before you use this document

This is a process reference, not legal advice. Texas has no single permit counter: each city administers its own permits and code editions, county programs vary, and several state agencies each own one piece of the picture. Confirm every item with the office that will actually issue it before you rely on it.

FIRST: WHICH CHECKLIST IS YOURS?

Work **Track A** if your lot is inside a city's limits: the city issues a building permit and everything funnels through its portal. Work **Track B** if the lot is unincorporated: there is usually no building permit at all — instead, four or five separate approvals each gate one thing you need (the septic system, the floodplain, the insurance, the driveway, the meter). In a city's ETJ, start with Track B and ask the city which of its rules — usually platting — reach you. How to determine your track is worked in TX.4.

TRACK A — LOT INSIDE A CITY'S LIMITS

The statutory floor: the International Residential Code "as it existed on May 1, 2012" is "adopted as a municipal residential building code in this state" and applies to all residential construction in a municipality (Local Gov't Code § 214.212(a), (b)). Cities may amend it after a public hearing and by ordinance, and may adopt newer ICC editions (§ 214.212(c)–(e)) — the big cities all have. Which edition **your** city enforces is a local fact this kit deliberately does not print: ask, and write it below. Houston, for example, is on the 2021 code family per the Houston Permitting Center.

Your one statewide guarantee — the 45-day clock

The city must grant or deny the permit, provide written reasons, or reach a written agreement with you within **45 days** of the application — and must refund permit fees if it blows an agreed extended deadline. (Local Gov't Code § 214.904)

A1: Before you file

	Item	Date	Notes / who confirmed
☐	City permitting portal identified and account registered — Houston: iPermits/ProjectDox; San Antonio: BuildSA; Fort Worth: Accela; Dallas: DallasNow Portal: _____		
☐	IRC edition and local amendments your city enforces confirmed Edition: _____ Confirmed: _____		
☐	Lot is legally platted — or the replat is filed and approved before the permit (Ch. 212; the city must publish its complete plat-application checklist)		
☐	Zoning, setbacks, and any overlay districts confirmed in writing		
☐	Flood zone checked; if any part of the site is in a Special Flood Hazard Area, the city's floodplain development requirements identified (cities must maintain NFIP-eligibility ordinances — Water Code § 16.3145)		
☐	Contractor registration sorted: yours, if the city lets an owner-builder act as general contractor — and the city's answer to TX.1's two questions filed with this kit		
☐	Homeowner/homestead affidavit forms obtained for each trade the city lets you pull yourself (see TX.5)		

A2: The application package

	Item	Date	Notes
☐	Application completed in the city's portal		
☐	Site/plot plan: property lines, setbacks, footprint, driveway, easements, drainage		
☐	Foundation plan — engineered in the expansive-soil metros; city-variable but near-universal, so ask before you draw		
☐	Floor plans, elevations, wall sections, window and door schedule		

A2: The application package

	Item	Date	Notes
☐	Energy-code compliance documentation — cities administer and enforce the energy code and report to SECO (Health & Safety Code § 388.003(c)) Path/report: _____		
☐	Registration numbers for each trade contractor — or the homeowner affidavit where the city allows it		
☐	Driveway / curb-cut approval per the city standard		
☐	Tree rules checked — San Antonio, for example, requires a tree inspection before the certificate of occupancy		
☐	Filed, and the 45-day clock noted Filed: _____ Day 45: _____		

Loc. Gov't Code §§ 214.212, 214.217, 214.904; Ch. 212 as amended by HB 3699 (2023); Water Code § 16.3145; Health & Safety Code § 388.003(c). Portal names and plan-content items reflect each named city's published requirements, read August 2026; your city's list governs.

TRACK B — LOT IN THE UNINCORPORATED COUNTY**The frame — read this first**

No county building permit exists for a single-family house. County fire-code permits expressly apply only to commercial, public, and 4-plus-unit buildings (Local Gov't Code §§ 233.062(a), 233.063), and the opt-in county building-standards subchapter "may not be construed to ... require prior approval by the county before the beginning of new residential construction" (§ 233.153(d)(1)). What follows is not a permit application — it is the list of the separate approvals that ARE required, each from a different office.

B1 — Septic (OSSF): the permit that functions as the de facto building permit

"A person must hold a permit and an approved plan to construct, alter, repair, extend, or operate an on-site sewage disposal system." (Health & Safety Code § 366.051(a)) The permit comes from the local "authorized agent" — usually the county — or from TCEQ where no agent exists (§ 366.051(b)); the rules are 30 TAC Ch. 285, and a site evaluation comes first. Because it is the one approval nearly every rural build needs BEFORE construction, treat it as your building permit: start it first.

B1: Septic

	Item	Date	Notes
☐	Authorized agent for your county identified (TCEQ's lookup map at tceq.texas.gov) Agent: _____		
☐	Site evaluation performed and filed		
☐	Permit application filed — the county's own packet, or TCEQ Form 0235 where TCEQ is the permitting authority Filed: _____ Permit #: _____		
☐	10-acre exemption checked precisely: single residence on a tract of 10 acres or larger, disposal lines no closer than 100 feet to the property line, effluent retained on-site, no nuisance, no groundwater pollution — all conditions, not any (§ 366.052(a), (b))		
☐	If an aerobic system: owner maintenance duties under § 366.0515 understood (penalties apply in counties of 40,000+ population)		

B2 — Floodplain development permit

Every Texas county must adopt NFIP-eligibility orders (Water Code § 16.3145) and may enforce floodplain management rules (§ 16.315). Violating the subchapter is a **Class C misdemeanor — and each day is a separate offense** (§ 16.3221). Practically: if any part of the site is in a Special Flood Hazard Area, you need a county floodplain development permit and an elevation certificate before construction. Some counties go further — Montgomery County requires a development permit for ALL land development, in and outside the floodplain (mctx.org).

B2: Floodplain

	Item	Date	Notes
☐	Flood zone determined for every part of the site — not just the house pad		
☐	County floodplain administrator identified (TX.4) Office: _____		
☐	If in an SFHA: floodplain development permit obtained BEFORE construction Permit #: _____ Date: _____		

B2: Floodplain

	Item	Date	Notes
☐	Elevation certificate arranged		
☐	Asked whether your county requires a development permit even outside the floodplain (Montgomery County does)		

B3 — Energy code: yes, even here

The fact that surprises everyone: Texas has a statewide energy code that applies where no permit office exists. For single-family construction it is the energy efficiency chapter (Ch. 11) of the IRC; SECO adopted the **2015 edition** effective September 1, 2016, and it remains the statewide standard as of August 2026 — check SECO's single-family page, because a public-input process on newer editions opened in late 2025 and the law lets SECO adopt a newer edition with at least nine months' notice (Health & Safety Code § 388.003(a), (a-1)).

How you comply outside a city is spelled out verbatim in § 388.004(a): *"For construction outside of the local jurisdiction of a municipality: (1) a building certified by a national, state, or local accredited energy efficiency program shall be considered in compliance; (2) a building with inspections from private code-certified inspectors using the energy efficiency chapter of the International Residential Code or International Energy Conservation Code shall be considered in compliance; and (3) a builder who does not have access to either of the above methods for a building shall certify compliance using a form provided by the laboratory, enumerating the code-compliance features of the building."* "The laboratory" is the Energy Systems Laboratory at Texas A&M (esl.tamu.edu), which publishes the builder self-certification form. As the builder, **you keep the original compliance documentation for three years and give the owner a copy** (§ 388.004(b)) — as owner-builder, that means your own file. An ERI path with declining maximum scores by climate zone is in § 388.003(j).

B3: Energy code

	Item	Date	Notes
☐	Compliance route chosen: accredited program / private code-certified inspector / ESL builder self-certification form Route: _____		
☐	Insulation, window, and equipment choices checked against 2015 IRC Chapter 11 (edition as of August 2026 — confirm at SECO's page)		
☐	Documentation filed and the three-year retention copy in this binder		

B4 — Windstorm certification (coastal counties only)

This applies in the designated catastrophe area: the 14 first-tier coastal counties — Aransas, Brazoria, Calhoun, Cameron, Chambers, Galveston, Jefferson, Kenedy, Kleberg, Matagorda, Nueces, Refugio, San Patricio, Willacy — plus the parts of Harris County east of SH 146 (tdi.texas.gov/wind). The notice comes BEFORE construction, verbatim: "A person shall provide written notice on a form prescribed by and submitted to the department of the person's intent to construct ... a structure for which the person is seeking coverage under this chapter before the person begins to construct ... the structure." (Insurance Code § 2210.2515(b)) TDI's form for this is the **WPI-1**.

Why you cannot skip it

To be insurable by TWIA — the windstorm insurer of last resort on the coast — a structure built on or after January 1, 1988 "*must comply with the plan of operation*" (§ 2210.251(a)), and the certificate of compliance "*is evidence of insurability of the structure by the association*" (§ 2210.251(g)). Two routes to the certificate (§ 2210.2515(c), (d)): a licensed professional engineer's sealed design and affirmation, or a TDI-appointed qualified inspector inspecting during construction; TDI issues the WPI-8/WPI-8-E. Building first and trying to buy TWIA later is the classic coastal owner-builder disaster.

B4: Windstorm (skip unless coastal)

	Item	Date	Notes
☐	Confirmed whether the site is in the catastrophe area (tdi.texas.gov/wind — first-tier county list)		
☐	WPI-1 filed with TDI BEFORE construction begins Filed: _____		
☐	Certificate route chosen: engineer (sealed design/affirmation) or TDI-appointed qualified inspector during construction Route: _____		
☐	Inspection-at-each-phase plan made (see TX.3) — missed phases cannot be re-inspected after cover		

B5 — Driveway, well, and the opt-in county standards

B5: Driveway / well / Subchapter F

	Item	Date	Notes
☐	Driveway onto a STATE-system highway (including FM roads): TxDOT permit obtained BEFORE constructing the access — TxDOT Form 1058 to the local district/area office; no work in the right of way until the executed permit is in hand, with 24-hour notice to TxDOT (43 TAC § 11.52)		
☐	Driveway onto a COUNTY road: asked the county road & bridge / engineer's office whether a driveway or culvert permit is required (county-variable — Comal County, for example, lists one)		
☐	Well: groundwater conservation district identified and its registration/permit and spacing rules confirmed BEFORE drilling — your own-property, own-use well needs no TDLR license (Occ. Code § 1901.001(15)(A)), but the district's rules still apply		
☐	Asked the county one exact question: "Has the commissioners court adopted a resolution under Local Government Code chapter 233, subchapter F?" (No statewide roster exists)		
☐	If YES — Subchapter F county: new construction must conform to the IRC as of May 1, 2008 or the county seat's edition (§ 233.153(a)); YOU hire one of the six listed inspector types for at least three inspections — foundation before concrete, framing/mechanical before drywall, final (§ 233.154(a)); county notice forms before starting and within 10 days after final, if the county requires them (§ 233.154(b), (c)); no county fee is allowed (§ 233.153(f))		

Health & Safety Code §§ 366.051, 366.052, 366.0515; 30 TAC Ch. 285; TCEQ Form 0235; Water Code §§ 16.315, 16.3145, 16.3221; Health & Safety Code §§ 388.003–.004; Insurance Code §§ 2210.251, 2210.2515; 43 TAC § 11.52; TxDOT Form 1058; Occ. Code § 1901.001(15)(A); Loc. Gov't Code §§ 233.062–.063, 233.152–.157 (El Paso County is a verified opted-in example, epcounty.com). Verified August 2026.

BOTH TRACKS — THE HOMESTEAD LIEN RULES ARE YOUR CONTRACT LAW

Texas has no state license board watching your subs — what it has instead is the strongest homestead protection in the country, and it cuts both ways: it protects your house from bad lien claims, and it voids lien rights for anyone who skips the formalities, which makes good subs insist on them. The constitutional baseline (Tex. Const. art. XVI § 50(a)(5)) protects the

homestead from forced sale except, among others, for "*work and material used in constructing new improvements thereon, if contracted for in writing*" — and for repair or renovation of **existing** improvements only if further conditions are met (both spouses' consent, a 5-day wait after the credit application, a 3-day rescission right, closing at a lender, attorney, or title office).

Get the structure right — most summaries print it wrong

For **NEW improvements** — your build — the constitution requires the **written contract**. The extra (A)–(D) conditions attach to **repair or renovation of EXISTING improvements**, not to new construction. (Tex. Const. art. XVI § 50(a)(5))

The statutory mechanics (Property Code § 53.254): to fix a lien on a homestead, the contract must be written, "*executed before the material is furnished or the labor is performed*," signed by **both spouses** if married, and **filed with the county clerk**. Lien affidavits against a homestead must carry the 10-point bold "THIS IS NOT A LIEN" notice (§ 53.254(f)), and subcontractor notices must include the statutory warning about the owner's 10 percent retainage (§ 53.254(g)).

Whether a not-yet-occupied house is already "homestead" for lien purposes is fact-dependent — intent plus preparation can establish homestead before occupancy. The safe course, and this kit's rule: **behave as if homestead rules apply** — written contract, both spouses' signatures, before work begins, filed with the clerk, for every trade — and reserve **10 percent retainage for 30 days after completion**, the duty the § 53.254(g) notice reflects.

L1: Lien hygiene, every sub and supplier

	Item	Date	Trade / contractor
☐	Written contract signed BEFORE any material is furnished or labor performed		
☐	Both spouses signed, if married		
☐	Contract filed with the county clerk Clerk file #: _____ Date: _____		
☐	10 percent retainage withheld for 30 days after completion		

If you sell later: the seller's-disclosure statute does not apply to a transfer "*of a new residence of not more than one dwelling unit which has not previously been occupied for residential purposes*" (Property Code § 5.008(e)). But a builder-vendor selling a new house gives common-law implied warranties of good workmanship and habitability (*Humber v. Morton*, 426 S.W.2d 554 (Tex. 1968)), and habitability is effectively non-waivable except for known defects (*Centex Homes v. Buecher*, 95 S.W.3d 266 (Tex. 2002)). Whether a one-off owner-builder who sells soon after completion counts as a builder-vendor is fact-specific — treat a quick sale as a risk, not a plan. There is no statutory new-home warranty in Texas; the TRCC scheme died in 2009.

Sources — every Texas claim in this document (verified August 2026)

What this document states	Authority
IRC (May 1, 2012) is the municipal residential code; cities amend and adopt newer editions	Loc. Gov't Code § 214.212
45-day municipal action clock, with fee refund	Loc. Gov't Code § 214.904
Cities must publish the complete plat-application checklist	Ch. 212; HB 3699 (2023)
County fire-code permits reach only commercial/public/4+ unit buildings	Loc. Gov't Code §§ 233.062(a), 233.063
Opt-in subchapter creates no prior county approval; no county fee	Loc. Gov't Code § 233.153(d)(1), (f)
Subchapter F: IRC (May 1, 2008) or county seat's edition; three private inspections; county notices	Loc. Gov't Code §§ 233.153(a), 233.154
OSSF permit + approved plan before construction; authorized agents; TCEQ where none	Health & Safety Code § 366.051; 30 TAC Ch. 285
The 10-acre OSSF exemption and its exact conditions	Health & Safety Code § 366.052
County NFIP orders mandatory; violations a Class C misdemeanor, each day separate	Water Code §§ 16.3145, 16.3221
Statewide energy code = IRC Ch. 11, 2015 edition as of Aug. 2026; adoption process	H&S; Code § 388.003(a), (a-1); SECO
Three compliance routes outside cities; 3-year retention; owner copy	H&S; Code § 388.004(a), (b)
Windstorm notice before construction (WPI-1); certificate = evidence of TWIA insurability	Ins. Code §§ 2210.2515(b), 2210.251(a), (g)
Driveway permit before constructing access to the state system	43 TAC § 11.52; TxDOT Form 1058
Own-property, own-use well exempt from TDLR licensing	Occ. Code § 1901.001(15)(A)
New-improvement homestead lien requires a written contract; repair/renovation adds conditions	Tex. Const. art. XVI § 50(a)(5)
Homestead lien contract: written, pre-work, both spouses, filed with the clerk	Property Code § 53.254
Seller's disclosure not required for a never-occupied new house	Property Code § 5.008(e)
Implied warranties of workmanship and habitability on a builder-vendor sale	Humber v. Morton; Centex v. Buecher

Read any statute cited above at **statutes.capitol.texas.gov** — pick the code (Occupations, Local Government, Health & Safety, Insurance, Property, Water), then the chapter; the Texas Constitution is under "CN." All statute text verified August 2026.